

A Revision Guide to Natural Law Theory

Introduction: Law, Morality, and Human Nature

Defining Natural Law: A Crucial Ambiguity

The term "natural law" is fundamentally ambiguous, a point that must be grasped from the outset. It refers to two distinct but interconnected fields of inquiry: a type of moral theory and a type of legal theory.¹

- **Natural Law as a Moral Theory:** This perspective posits that the standards of morality—what is right and wrong, good and evil—are not mere human inventions or cultural conventions. Instead, they are objective principles derived from the nature of the world and, specifically, from the nature of human beings.¹ These moral standards are considered universal and accessible to all rational persons through the faculty of reason.
- **Natural Law as a Legal Theory:** This perspective concerns the nature of law itself. Its central claim is that the authority and validity of human-made laws (positive laws) are necessarily connected to their moral merit. In other words, a rule's status as "law" depends not only on its source (e.g., being passed by a parliament) but also on its substantive justice.¹

While these two theories are logically independent, they are deeply intertwined in the classical tradition. This guide will explore both dimensions, focusing primarily on natural law as a legal theory, which cannot be fully understood without its moral foundations.

The Central Claim: The "Overlap Thesis"

The unifying principle of all natural law legal theories is what is known as the **Overlap Thesis**. This thesis asserts that there is a necessary, conceptual connection between law and morality.¹ It directly contradicts the foundational tenet of its main rival, legal positivism, which argues for a "Separability Thesis"—the idea that law and morality are conceptually distinct phenomena.² For the natural lawyer, some legal standards derive their authority not from human convention, but from their logical relationship to moral standards.¹ This core claim suggests that natural law is not merely a theory about the *content* of just laws, but a more profound theory about the very *purpose and authority* of law as a human institution. The connection between a law's validity and its moral merit implies that law is not a value-neutral tool for social control. Rather, it is a rational and moral enterprise with an intrinsic purpose: to facilitate human flourishing and achieve the common good. To understand what makes a legal norm authoritative (a question of legal theory), one must first engage with what is morally meritorious (a question of moral theory). This understanding frames the entire tradition, explaining why the connection to Aristotle's teleology and Aquinas's divine plan is so foundational.

Part I: The Ancient Foundations of a Universal Law

Aristotle's Teleological Universe: The Metaphysics of Purpose

The philosophical bedrock of natural law theory lies in the teleological worldview of Aristotle.⁴ For Aristotle, everything in the natural world (*phusis*) has a *telos*—an intrinsic end, purpose, or goal toward which it is directed.⁵ This is not an externally imposed purpose but an internal principle of change and development. An acorn's *telos* is to become an oak tree; this process represents the fulfilment of its nature and its specific function (*ergon*).⁴ Aristotle extends this teleological analysis to human beings. He asks what the unique function (*ergon*) of a human is. Since humans are distinguished from all other beings by their capacity for reason, he

concludes that the human *telos* is to live a life of rational activity in accordance with virtue. The achievement of this end is *eudaimonia*, a state often translated as "flourishing" or "the good life".⁴ Crucially for legal theory, Aristotle argued that political justice is composed of two parts: that which is natural (*phusikon*) and that which is conventional (*nomikon*). The natural part is that which "has the same capacity [or force] everywhere" and does not depend on human opinion.⁵ This concept of a universal, natural standard of justice provides the normative ground upon which just laws can be built, serving as a measure for the contingent, conventional laws of any particular city-state (*polis*).

Part II: The Great Synthesis of St. Thomas Aquinas

The Hierarchy of Law: Locating Natural Law in God's Plan

St. Thomas Aquinas, in his *Summa Theologiae*, masterfully synthesized Aristotelian philosophy and Christian theology to produce the most influential and systematic account of natural law in the Western tradition. He structured his theory around a four-tiered hierarchy of law, which situates human moral and legal reasoning within a divine cosmic order.¹

1. **Eternal Law (Lex Aeterna):** This is God's rational plan for the governance of all creation. It is the perfect and unchanging reason of God, directing all things in the universe to their proper end. As it exists in the mind of God, it is beyond complete human comprehension.¹
2. **Natural Law (Lex Naturalis):** This is the rational creature's "participation" in the Eternal Law.¹⁵ It consists of those principles of the Eternal Law that are accessible to human reason. Through reason, humans can grasp the fundamental principles that direct them toward their natural *telos* or good.¹

3. **Human Law (Lex Humana):** These are the specific, positive laws enacted by human societies to order communal life. For Aquinas, human law derives its legitimacy from natural law in two ways: either as a logical deduction (e.g., the prohibition of murder is deduced from the principle "do no harm") or as a determination of general principles (e.g., natural law requires that wrongdoing be punished, but human law determines the specific punishment). Crucially, a human law that fundamentally violates the natural law is not a true law but a "perversion of law" and loses its binding force on the conscience—the principle of *lex iniusta non est lex* ("an unjust law is not a law").¹
4. **Divine Law (Lex Divina):** This is the law revealed directly by God through scripture, such as the Ten Commandments. It complements natural law by clarifying certain truths and directing humans to their supernatural end: eternal salvation with God, which is beyond the scope of natural reason alone.¹

Reason and Revelation: The Precepts of Natural Law

Moral reasoning, for Aquinas, begins with a foundational, self-evident principle known as the **Synderesis Rule**: "Good is to be done and pursued, and evil is to be avoided".⁴ This is not a conclusion derived from other facts but the first, indemonstrable principle of all practical reason—the domain of action. From this primary principle, human reason grasps a set of **Primary Precepts** of the natural law. These precepts correspond to our fundamental natural inclinations, which reason identifies as basic human goods that perfect our nature. These include the goods of self-preservation, procreation and the education of offspring, seeking knowledge (especially of God), and living in society.⁴ These precepts are universal and unchanging because they are based on the shared structure of human nature. From these general principles, reason deduces more specific **Secondary Precepts** (e.g., "do not steal," "do not commit adultery"), which govern particular actions. While the primary precepts are immutable,

the application of secondary precepts can vary depending on specific circumstances.⁴ Aquinas's framework provides a sophisticated, pre-emptive answer to the later philosophical challenge posed by David Hume's "is-ought" problem. A superficial reading might suggest that Aquinas derives moral "oughts" from factual "is" statements about human inclinations. However, his system is more nuanced. The Synderesis Rule is an axiom of practical reason, not a deduction. The natural inclinations do not function as logical premises in an argument; instead, they provide the *content* that practical reason works upon. Reason directly grasps these inclinations—for life, for knowledge, for society—not merely as facts, but as *goods* to be pursued. The "ought" is thus not inferred from the "is" of inclination but is built into the very structure of practical rationality from its first principle. This insight, that basic values are grasped through an act of non-inferential understanding, is the same strategy revived by modern natural lawyers like John Finnis to defend the theory against positivist critiques.

Part III: The Great Debate - Natural Law vs. Legal Positivism

Articulating the Core Conflict: Two Views of Law's Authority

The central debate in jurisprudence for the past two centuries has been between natural law theory and legal positivism. The conflict hinges on the most fundamental question about law: What is the ultimate source of its authority? Natural law theory, with its Overlap Thesis, insists that a law's authority is inextricably linked to its moral justice. Legal positivism, with its Separability Thesis, counters that a law's authority derives solely from its source or "pedigree"—that is, from the fact that it was created by a recognized authority according to established social rules.¹

The Positivist Challenge I: John Austin's Command Theory

The first systematic formulation of legal positivism was developed by the 19th-century English jurist John Austin. Seeking to make the study of law a true science, he sought to define it in strictly empirical, value-free terms.¹⁶ His **Command Theory** defines law as a species of command issued by a **sovereign**.¹⁷ A sovereign is a determinate person or group who is habitually obeyed by the majority of a society but who does not habitually obey any other human superior.¹⁸ These commands are backed by the threat of a **sanction**, an evil to be inflicted in the case of non-compliance.² For Austin, the question of a law's validity is a factual inquiry: Was this command issued by the sovereign? The law's moral merit or demerit is an entirely separate question.³ He famously dismissed the natural law maxim *lex iniusta non est lex* as "stark nonsense," arguing that to say a law that conflicts with a higher moral standard is not binding is simply to confuse what law *is* with what it *ought to be*.¹

The Positivist Challenge II: H.L.A. Hart's Sophisticated Positivism

In the 20th century, H.L.A. Hart presented a far more sophisticated version of legal positivism that superseded Austin's theory. In *The Concept of Law*, Hart argued that the command theory was a distortion, failing to account for many features of a modern legal system. For instance, it cannot explain laws that confer powers rather than impose duties (e.g., the rules for making a valid will or contract), nor can it explain the seamless continuity of legal authority when one sovereign succeeds another.¹⁶ Hart's central thesis is that law is best understood as a **union of primary and secondary rules**.¹⁹

- **Primary Rules** are rules of conduct that impose duties or obligations on citizens (e.g., criminal law, tort law).
- **Secondary Rules** are rules about the primary rules. They are power-conferring rules that allow for the creation, modification, and adjudication of the primary rules. Hart identifies three types:

1. **Rules of Change**, which specify the procedures for creating and amending laws.
2. **Rules of Adjudication**, which empower institutions like courts to resolve disputes.
3. The **Rule of Recognition** is the master rule of the system. It specifies the ultimate criteria of legal validity (e.g., "What the Queen in Parliament enacts is law"). The existence of a Rule of Recognition is not a command but a complex social fact, demonstrated by its acceptance and use by the officials of the legal system.¹⁹

While Hart firmly maintains the positivist separation of law and morality, his theory allows that a system's Rule of Recognition *may*, as a contingent matter, incorporate moral principles as criteria for legal validity (e.g., a constitution that makes respect for human rights a condition of legal validity). This position is known as "inclusive" or "soft" positivism.²

Table: Natural Law vs. Legal Positivism at a Glance

Feature	Natural Law Theory	Legal Positivism
Source of Law	Reason, human nature, God's will.	Social facts: commands of a sovereign (Austin); a Rule of Recognition accepted by officials (Hart).

Feature	Natural Law Theory	Legal Positivism
Criteria for Validity	A human law must conform to principles of natural law/morality to be fully valid and obligatory.	A law is valid if it has the correct pedigree (enacted by the right authority via the right procedure).
Law & Morality	Overlap Thesis: There is a necessary, conceptual connection between law and morality.	Separability Thesis: There is no necessary connection; law and morality are conceptually distinct.
<i>Lex Iniusta Non Est Lex</i>	An unjust law is not a law in the fullest sense; it lacks moral authority and binding force on conscience.	An unjust law, if validly enacted, is still a law. Its injustice is a reason for moral criticism or reform, not a basis for denying its legal status.
Key Proponents	Aristotle, Cicero, Aquinas, Finnis, Fuller, Dworkin.	John Austin, H.L.A. Hart, Joseph Raz.

Part IV: Modern Revivals and Reinterpretations of Natural Law

In the face of powerful positivist critiques and a broader cultural shift away from theological and metaphysical worldviews, 20th-century philosophers developed new and sophisticated defenses of natural law. These modern theories strategically shift the foundation of natural law away from a divinely ordered cosmos and towards more defensible, human-centered bases like practical reason, the logic of rules, or the nature of legal interpretation. They represent attempts

to make the core natural law insight—the inseparability of law and morality—plausible within a modern, secular, and pluralistic society.

John Finnis and the "New Natural Law": A Focus on Basic Goods

The most influential modern restatement of the Thomistic tradition comes from John Finnis. Finnis's "New Natural Law" theory brackets metaphysical claims about nature and instead grounds itself in an analysis of practical reason.¹ He argues that there are seven **basic forms of human good** that are self-evident, underived, and intrinsically valuable. These are: life, knowledge, play, aesthetic experience, sociability (friendship), practical reasonableness, and 'religion' (the consideration of ultimate questions).¹ These goods are not derived from an observation of human nature but are grasped directly by practical reason as worth pursuing. Morality, for Finnis, consists of the requirements of **practical reasonableness**, which are principles that guide our choices in participating in these basic goods. The purpose of law, then, is to facilitate the **common good**—to create a social environment where every member of the community can effectively pursue these basic goods.¹ Finnis offers a nuanced interpretation of the maxim *lex iniusta non est lex*. An unjust law might be legally valid in a technical, source-based sense, but it is not law in its "focal" or "fullest" sense because it fails to provide a genuine moral reason for action and subverts the very purpose of law.¹

Lon Fuller's Procedural Naturalism: The "Inner Morality of Law"

Lon L. Fuller offers a distinctively modern form of natural law that focuses on process rather than substance. He rejects the idea of necessary substantive moral constraints on the content of law but argues that law has an "inner morality" that is procedural in nature.¹ Fuller defines law as "the enterprise of subjecting human conduct to the governance of rules." For this enterprise

to succeed—for a system of rules to even qualify as a legal system—it must adhere to eight principles of legality. Laws must be:

1. General
2. Publicly promulgated
3. Prospective (not retroactive)
4. Clear and understandable
5. Non-contradictory
6. Possible to obey
7. Relatively stable over time
8. Administered in a way that is congruent with their wording.¹

A regime that systematically violates these principles (e.g., a dictatorship ruling by secret, retroactive, and contradictory decrees) does not have a bad legal system; it fails to have a legal system at all. Because these principles have inherent moral value (they respect human dignity and autonomy by making it possible for people to guide their own conduct), they establish a necessary conceptual connection between law and a procedural form of morality.¹

Ronald Dworkin's "Third Way": Law as Integrity

Ronald Dworkin's theory presents a formidable challenge to legal positivism, offering a "third way" between it and traditional natural law. Dworkin attacks Hart's model by focusing on "**hard cases**"—disputes where existing legal rules are unclear or silent. In such cases, Dworkin argues, judges do not simply invent new law (as a positivist might claim). Instead, they are bound by unwritten legal **principles** that are already part of the law.¹ He famously analyzed

the case of *Riggs v. Palmer*, where a court prevented a grandson who had murdered his grandfather from inheriting under the grandfather's valid will. The court did so by invoking the principle that "no one shall be permitted to profit by his own fraud." Dworkin argues that such principles derive their legal authority not from their pedigree but from their moral content and their coherence with the legal system as a whole. His theory of "**law as integrity**" requires judges to interpret the law by finding the principles of political morality that provide the best constructive interpretation—the best moral justification—for the community's entire legal history.¹ This makes moral reasoning an essential and inescapable part of determining what the law *is*, thereby affirming the Overlap Thesis.

Part V: Enduring Criticisms and Philosophical Challenges

Hume's Guillotine: The Is-Ought Problem

Perhaps the most persistent and powerful philosophical challenge to traditional natural law theory was articulated by the 18th-century philosopher David Hume. In his *A Treatise of Human Nature*, Hume observed that moral and theological writers frequently begin by making descriptive statements about what *is* the case (e.g., facts about human nature or the existence of God) and then, without justification, suddenly shift to making prescriptive statements about what *ought* to be the case.²² Hume argued that this move is a logical fallacy. An "ought" expresses a new relation or affirmation that is not contained within the "is" premises. Therefore, one cannot logically deduce a normative conclusion (a value) from purely factual premises.²⁴ This critique, often summarized as "Hume's Guillotine" or the "is-ought problem," appears to strike at the very heart of natural law, which seems to derive moral "oughts" from factual observations about human nature's "is".²²

Natural Law's Response to Hume: The Appeal to Self-Evidence

Modern proponents of natural law, particularly John Finnis, argue that Hume's critique fundamentally mischaracterizes their method. They contend that the first principles of natural law (the basic goods) are not *deduced* from facts about nature at all. Instead, they are *per se nota*—self-evident and underived principles of practical reason.²⁶ The argument is that one does not infer the value of knowledge from the empirical fact that humans have a curiosity or an inclination to know. Rather, any rational person, in reflecting on the activity of knowing, directly grasps "knowledge" as a good to be pursued and "ignorance" as a state to be avoided. The facts of human nature explain *why* these goods are perfective of us, but they do not serve as logical premises from which the "ought" is derived.²⁶ The value is grasped through an act of insight, not logical inference. The "ought" is foundational to practical reason, not a conclusion of theoretical reason.

The Reality of Unjust Laws: Austin's "Stark Nonsense"

A more common-sense objection, forcefully articulated by John Austin, is that the maxim *lex iniusta non est lex* is empirically false and conceptually confusing. Unjust laws are enacted, enforced by courts, and obeyed by citizens all the time; to deny that they are "law" is to engage in "stark nonsense".¹ The modern natural law response, clarified by Finnis, is that the maxim should not be interpreted as a claim about legal validity in the narrow, positivist sense. It is, rather, a claim about moral obligation and the central purpose of law. An unjust law may be socially operative and have the formal markings of law, but it is a defective, corrupt, or "less-than-focal" instance of law. It fails to fulfil the primary moral purpose of law, which is to serve the common good, and therefore, it lacks the full binding force on a person's conscience.¹ It is "law" in the same qualified sense that a quack doctor is a "doctor"—they possess the title but fail to fulfil the essential function of the role.

Part VI: Natural Law in Practice - Contemporary Applications

Bioethics and the "Laws of Nature"

Natural law theory provides a robust framework for addressing contemporary bioethical dilemmas, grounding its analysis in the pursuit of basic human goods and the protection of human dignity.²⁸

- **Sanctity of Life:** The basic good of "life" provides a foundation for a "sanctity of life" ethic, which holds that human life has intrinsic value from conception to natural death.²⁸ Consequently, practices like **abortion and euthanasia** are typically viewed as direct, intentional attacks on this fundamental good and are therefore considered intrinsically immoral.²⁸
- **The Principle of Double Effect:** This is a crucial tool in natural law reasoning for analyzing complex moral situations. The principle distinguishes between intended effects and foreseen but unintended side-effects of an action.²⁹ An action with both a good and a bad effect may be permissible if four conditions are met: (1) the act itself is good or neutral; (2) the agent intends only the good effect; (3) the bad effect is not the means to the good effect; and (4) there is a proportionate reason for allowing the bad effect.²⁸ This principle allows, for example, for a life-saving surgery on a pregnant woman that has the foreseen but unintended consequence of the fetus's death, while forbidding a direct abortion where the fetus's death is the intended means to save the mother.²⁹
- **Reproductive Technologies:** Issues like **cloning and certain forms of genetic engineering** can be critiqued from a natural law perspective for instrumentalizing human life, treating persons as products to be designed rather than as gifts to be received. Such practices may be seen as violating human dignity and disrupting the

natural connection between procreation and the marital relationship, which is considered essential for human flourishing.²⁸

Constitutional Law and the "Higher Law"

The influence of natural law on constitutional theory and interpretation, particularly in the United States, is profound and deeply controversial. The idea that there is a "higher law" of fundamental justice that limits the power of government is woven into the nation's founding.

- **Historical Roots:** The Declaration of Independence is a quintessential natural law document, appealing to "the Laws of Nature and of Nature's God" and grounding its claims in self-evident truths about "unalienable Rights" to "Life, Liberty and the pursuit of Happiness".³⁰ This reflects the deep influence of natural law thinkers like John Locke on the American founders.
- **Unenumerated Rights and Landmark Cases:** The belief in a higher law has fueled the doctrine of "substantive due process," through which the Supreme Court has recognized fundamental rights not explicitly listed in the Constitution's text.
 - An early example is *Fletcher v. Peck (1810)*, where Chief Justice John Marshall's court invalidated a Georgia state law, appealing not only to the Constitution's Contract Clause but also to "general principles which are common to our free institutions," suggesting a foundation in natural justice beyond the written text.³¹
 - A more famous modern example is *Griswold v. Connecticut (1965)*. The Court struck down a state law banning the use of contraceptives by married couples, finding a "right to privacy" in the "penumbras, formed by emanations" from several guarantees in the Bill of Rights.³² In a fiery dissent, Justice Hugo Black condemned this reasoning as a dangerous and illegitimate revival of a "natural

law due process philosophy," accusing the majority of acting as a "super-legislature" by writing its own moral preferences into the Constitution.³²

This ongoing debate over cases like *Griswold* highlights the central tension in constitutional law: whether judges should confine themselves to the text and history of the document, or whether they can and should enforce the unwritten principles of justice and liberty that many believe the Constitution presupposes.

Conclusion: The Enduring Relevance of Natural Law

The theory of natural law has travelled an epic intellectual journey, from the teleological cosmos of Aristotle and the Stoics, through the divine order of Aquinas, to its sophisticated modern reconstructions in the face of scientific and philosophical challenges. Despite centuries of potent criticism, particularly from legal positivism and the shadow of Hume's guillotine, the tradition endures. Its persistence stems from its response to a fundamental human intuition: that law is not merely an instrument of power but ought to be an instrument of justice. Natural law provides a universal moral vocabulary for critiquing the positive laws of any state, arguing that the ultimate measure of our laws is found in their capacity to promote the fundamental goods that define a flourishing human life. Grounding justice in our shared human nature provides the philosophical foundation for universal human rights and continues to fuel vital debates in ethics, law, and theology, ensuring its permanent relevance in the quest for a just and reasonable social order.